CONFIDENTIAL
Enron Corp.
Case No. EC-2002-01038
Doc No. EC5382E5A
Date: 01/15/2003
ENRON CORP. - PRODUCED PURSUANT TO FERC SUBPOENA.
SUBJECT TO PROTECTIVE ORDER. CONFIDENTIAL TREATMENT REQUESTED.
RELEASE IN FULL

**From:** Williams, Robert C. <c..williams@enron.com>
**Sent:** Fri, 20 Jul 2001 12:27:51 -0700 (PDT)
**To:** Sanders, Richard B. <b..sanders@enron.com>
**Subject:** FW: Meetings with EES officers in San Ramon and Costa Mesa regarding California AG subpoena

-----Original Message-----
From: "Molland, Michael E." <MMolland@brobeck.com>@ENRON
[mailto:IMCEANOTES-+22Molland+2C+20Michael+20E+2E+22+20+3CMMolland+40brobeck+2Ecom+3E+40ENRON
Sent: Friday, June 22, 2001 6:42 PM
To: Williams, Robert C.; 'sbishop@gibbs-bruns.com'; 'mtuohey@velaw.com'; 'mlk@pkns.com'
Subject: FW: Meetings with EES officers in San Ramon and Costa Mesa regard ing California AG subpoena

> -----Original Message-----
> From: Molland, Michael E.
> Sent: Friday, June 22, 2001 4:38 PM
> To: 'Robert.C.Williams@enron.com'; 'sbishop@gibbs-bruns.com';
> 'mtuohey@velaw.com'; 'mlk@pkns.com'
> Cc: 'Richard.B.Sanders@enron.com'; Fergus, Gary S.; Smith, Amanda D.;
> Meringolo, Peter
> Subject: Meetings with EES officers in San Ramon and Costa Mesa
> regarding California AG subpoena
>
>
> We met and talked to EES officers this week on three occasions to
> identify the documents called for by the AG's subpoena that reside within
> California. This memo discusses those three meetings:
>
> I. SUMMARY:
> The following people attended these meetings:
> * 6/19/01 Conference Call (M. Molland, A. Smith, J. Wright, T. Reilly,
> D. van Ulden; R. Williams)
> * 6/20/01 Meeting, at EES San Ramon (M. Molland, A. Smith, P.
> Meringolo, D. van Ulden, T. Reilly, J. Eastlund, M. Ahad)
> * 6/21/01 Meeting, at EES Costa Mesa (A. Smith, J. Wright, T. Taylor)
>
> General Conclusions:
> It appears that while there may be a large volume of responsive
> documents in both San Ramon (SR) and Costa Mesa (CM) (perhaps as much as
> 50-100 boxes in each office, depending on how broadly we construe the
> requests for information for EES's "communications regarding decisions" to

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> switch customers back to the utilities), there are relatively few highly
> sensitive internal Enron documents which could be used to evidence the
> alleged anti-trust violations or "price-gouging." However, many of the
> documents may contain proprietary customer information.
> * In all of our meetings with EES personnel, we emphasized what
> constitutes a responsive document from a "territorial" perspective. (i.e.
> only documents in hard copy form in SR or CM or in electronic form on the
> SR or CM servers.) It appears that many account managers regularly
> download and print documents from the Document data base (housed in
> Houston) or the EES intranet. Going forward, it will important to
> emphasize that in collecting documents for possible production, EES
> personnel should not download from these sources.
> * We also emphasized that EES personnel should not currently be
> physically collecting documents, rather they should be assessing what
> sensitive documents exist, locating responsive documents and NOT deleting
> or destroying responsive material.
> * Mojhan Ahad and Tamara Taylor (Admins assigned to D. van Ulden and
> J. Wright respectively) will be coordinating any document production that
> becomes necessary. It appears that a slightly different approach may be
> necessary to recover responsive documents in SR and CM. The account
> managers in CM appear to have more independence with respect to managing
> their accounts. It may be necessary to speak with them directly. In SR,
> it appears that it may be possible to collect the large majority of
> responsive documents directly from Tom, Dirk and Mojhan.
> * Other than the personnel at SR and CM, there are other EES personnel
> in California that we may need to meet. Specifically, Sue Mara and Jeff
> Dasovich with regulatory affairs in San Francisco and several Originators
> in Long Beach (and possibly in Northern California?) who work from home.
> This latter group may be particularly important as they appear to have
> some account management responsibility on natural gas accounts and most
> likely have some responsive documents.
> * It is unclear the extent to which the subpoena is common knowledge.
> Dirk and Tom in SR stated that they had not revealed its existence to
> their staff. In CM, Jim had told his staff about the existence of the
> subpoena but had not told them who it was from or what it referenced. If
> we proceed with the collection of responsive documents, we will need to
> develop a policy with respect to the confidentiality of the subpoena.
> * It appears (based on conversations with Jim in CM) that although
> general power point presentations are made up for meetings with customers
> (in Houston, apparently), each account manager may change or focus the
> presentation for a specific customer. Therefore, each presentation will
> constitute a different document and must be produced separately.
> * Note on "California Crisis" database, Golden Bear and the de-DASR
> documents: These documents are probably the most sensitive, but many may
> be protected on attorney-client, litigation or settlement privilege

> grounds. There are four Golden Bear team members in California: Tom,
> Dirk, Jim and George Waidelich. It seems in SR, the Golden Bear documents
> are only in the possession of Dirk and Tom. However, in CM, account
> managers may have some access to them.
>
> II. Recommendations Going Forward:
> * Collect and assess most sensitive documents. These would include the
> Golden Bear and de-DASR documents. These should be collected next week in
> order to begin a legal analysis of privilege issues. In SR, this
> collection can most likely be done by Mojhan. In CM, it may be necessary
> to interview individual account managers.
> * Meet with "floating" Originators in Long Beach and potentially in
> Northern California to assess if they possess any responsive documents. A
> brief conversation with the San Francisco Regulatory Affairs people (Sue
> and Jeff) and with George Waidelich would also be warranted. This should
> also be done immediately.
> * Meet with Tamara and Mojhan to develop a strategy for locating and
> copying responsive hard copy documents. This is underway.